

EMAIL 4 — TO DR KRISHNAIAH: THE RECORDS AND HIS ATTENDANCE

To: Ravikumar <ravikumar@mindandmemoryservice.com.au>

Cc: Info M <info@mindandmemoryservice.com.au>

Subject: Re: Cory Shepherd (DOB 11.01.1991) - thank you; one question about giving evidence by phone

Dear Dr Krishnaiah,

Thank you, and I am sorry to hear about the staff sickness. You are right that your report of 13 February 2025 covers the diagnosis and the work-related origin, and I am relying on it in the appeal as it stands. I already hold a copy, so nothing further is needed on it, and I understand you are not in a position to write anything more.

The one thing the appeal rules require that a report alone cannot supply is the author being available to speak to it. So I have one question, and a yes or no is all I need for now.

If my appeal goes to a hearing, would you be willing to give brief evidence by telephone or video? The Commission will not consider your report unless its author is available to speak to it and to answer questions. I understand you do not have time for medico-legal work, and I am not asking for a report or for anything to be written. What it would involve is:

- by phone or video, at a date and time you choose - the Commission arranges expert evidence this way as a matter of course;
- around 30 to 45 minutes;
- questions confined to your report of 13 February 2025 and your clinical records of my care - nothing beyond what you have already written;
- your usual fee for the time, which I will meet;
- and if it helps with your practice or insurer, I can ask the Commission to issue a formal attendance notice so that the request comes from it rather than from me.

The hearing date is not yet set. If you can let me know by Friday 2 October 2026 whether you are willing in principle, I can plan around it; the actual date would be fixed with you later.

Separately, and with no urgency beyond the appeal timetable: when your staff are able, could the practice send my clinical records from my first consultation on 24 October 2024 onwards

- the consultation notes and the prescribing over time, as exported from your system.

Thank you for your help with this.

Kind regards,

Cory Shepherd